Te Tiriti o Waitangi Policy

Whakapapa

In 2001, the Charter of the Green Party of Aotearoa New Zealand was amended to recognise Te Tiriti o Waitangi as our country's founding document, and to acknowledge Māori as tangata whenua. The Green Party Long-Term Strategy outlines our commitment to Te Tiriti o Waitangi:

> *"Embraced by all New Zealanders and grounded in the rangatiratanga of mana whenua, Te Tiriti o Waitangi is honoured in the constitutional transformation of Aotearoa." Māori are resourced to lead "restorative and rehabilitative justice and provide for the well-being of whānau, the environment and our natural ecosystems."*

In 2022, the Green Party and Political Office were restructured to better uphold our commitment to Te Tiriti o Waitangi, and this policy was developed by our Māori member collective, Te Rōpū Pounamu.

Ngā Uara | Values and Principles

This policy sets out the key values that guide us in all aspects of our work in policy, community, and local and central government.

> *Tikanga is "a relational law based on an ethic of restoration that seeks balance in all relationships, including the primal relationship of love for and with Papatūānuku." Moana Jackson in 'Imagining Decolonisation'*

Tikanga: We affirm that Māori values and cultural practices expressed through tikanga and kawa were the first laws in Aotearoa, continue to guide Maōri today, and have been recognised by the courts as forming part of our country's laws. To uphold the integrity of these values, we will provide context and interpretation whenever we use concepts from te ao Māori such as wairuatanga, whanaungatanga, kaitiakitanga, kotahitanga and manaakitanga in our work.

> *"The notion of Tino Rangatiratanga asserts and reinforces the goal of Kaupapa Māori initiatives: allowing Māori to control their own culture, aspirations and destiny." - Rangahau*

Tino Rangatiratanga: We affirm tino rangatiratanga of whānau, hapū, and iwi over their whenua, awa, moana, kāinga and all of their taonga (both tangible and intangible). This includes mātauranga Māori, rongoā, tikanga and kawa, and taonga species. We support tangata whenua-led processes, actions and decision-making by devolving power and investing resources in all matters that affect them. We affirm that constitutional transformation, as envisioned by Matike Mai, will address the source of environmental degradation and social disconnection and inequity within Aotearoa.

> *"Indigenous peoples have the right of self-determination. By virtue of that right they freely determine their political status and freely pursue their economic, social and cultural development. - UNDRIP*

Mana Motuhake: We affirm the reo Māori texts of He Whakaputanga o te Rangatiratanga o Nu Tireni 1835 and Te Tiriti o Waitangi 1840 as the founding constitutional documents of our country. We recognise the reo Māori text of Te Tiriti o Waitangi was signed by rangatira and guarantees the ongoing exercise of tino rangatiratanga. Rangatira did not sign Te Tiriti o Waitangi to co-govern taonga over which they already had authority, but we acknowledge that co-governance can enable progress towards a mature Tiriti-based relationship. The Waitangi Tribunal must be fully resourced and have binding decision-making authority to ensure Tiriti breaches are addressed.

> *We sweat and cry salt water, so we know that the ocean is really in our blood - Teresia Teaiwa*

Hononga: We recognise the historical relationships between tangata whenua and tagata moana. Te Tiriti o Waitangi gives tangata Tiriti/pākehā a place in Aotearoa, with expectations of how they should uphold that relationship. We also recognise that tauiwi of colour navigate these relationships with unique challenges. We acknowledge the need for ongoing dialogue to build the high level of awareness, understanding and vision required to give life to Te Tiriti o Waitangi in our nation.

> *"I riro whenua atu, me hoki whenua mai' - as the land was taken, so the land should be returned" - King Tawhiao*

Whenua: Whenua provides Māori both a cultural and economic base. The effects of colonisation and Tiriti breaches have disconnected generations of Māori from their land and opportunities to sustain their whānau. Hoki Whenua Mai is central to restoring Māori cultural, physical, mental, and spiritual well-being. We recognise that tāngata whaikaha/whānau hauā, including tangata turi, face additional barriers (physical, linguistic and more) in nurturing connection to whenua, marae and culture, which need to be addressed. We support the mutually agreed resolution of, and restitution for, all outstanding historical and contemporary breaches of Te Tiriti o Waitangi and acknowledge a Crown obligation to prevent ongoing and further breaches, including degradation of our environment and the loss of biodiversity.

> *"A lot more of our people are beginning to realise that social change led by Indigenous wisdom is about how we organise and how we treat each other, as well as what we're fighting for." - Catherine Delahunty in 'E-tangata'*

Ōritetanga: The systemic racism of settler colonialism, enabled by the Doctrine of Discovery, has created inequitable systems and vast disparities for Māori. Further discrimination and disparity exist for rangatahi, takatāpui, and tangata whaikaha/whānau hauā. We support tino rangatiratanga for whānau, hapū, iwi, and Māori katoa to ensure equitable outcomes in all areas, including health, education, justice, te taiao, housing, and economic well-being. In recognition of the interconnection of Māori with Indigenous Peoples throughout the world and we uphold the United Nations Declaration on the Rights of Indigenous Peoples (UNDRIP), alongside the Mataatua Declaration on Cultural and Intellectual Property Rights of Indigenous Peoples.

Ngā Kaupapa Here | Tiriti-based Policy

All Green Party policies are rooted in Te Tiriti o Waitangi and must be aligned with this foundational policy. Rather than a standalone policy for kaupapa Māori, kaupapa Māori perspectives are incorporated in all policies, several of which are linked above, for example:

- Our Housing and Sustainable Communities Policy seeks to return whenua Māori to Māori ownership and restore the rights of Māori as its kaitiaki
- Our Governance Policy works to ensure Aotearoa New Zealand engages in a process of constitutional transformation as outlined in Matike Mai
- Our Education Policy works to ensure that tamariki Māori feel nurtured, supported, and confident in their identity, whakapapa, and reo, at kura kaupapa, and in mainstream education

Our policy development process is flaxroots-led and equity-driven. We work to hear everyone's voices and find consensus. We prioritise the leadership and voice of tangata whenua during policy development, including policy design, direction, and decision-making. When Te Rōpū Pounamu provides firm direction on any policy, we accept it as binding. In every full policy review, we seek Mātauranga Māori to expand our understanding of the problems involved and appropriate actions to take, and undertake Critical Tiriti Analysis of draft policy content.

The Green Party's internal policies and practices are also Tiriti-based, including our co-leadership model. Te Rōpū Pounamu provides leadership in transforming Green Party internal policies and practices to align with tikanga Māori.